

STATE OF NEW YORK

852--B

Cal. No. 83

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. PAULIN, WEPRIN, COLTON, LEE, ALVAREZ, SANTABARBARA -- read once and referred to the Committee on Consumer Affairs and Protection -- reported and referred to the Committee on Codes -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading -- again amended on third reading, ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the general business law, in relation to requiring bicycles advertised for sale or resale in New York state to have an identifying serial number

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (a) of subdivision 1-a of section 391-c of the
2 general business law, as added by chapter 6 of the laws of 1986, is
3 amended and three new paragraphs (d), (e) and (f) are added to read as
4 follows:
5 (a) No bicycle manufactured or assembled on or after January first,
6 nineteen hundred eighty-nine shall be sold ~~[or]~~, offered for sale, or
7 offered and advertised for resale in this state unless it has an identi-
8 fying serial number that distinguishes that bicycle from all other bicy-
9 cles of that same make and model permanently and visibly engraved or
10 stamped in readily legible boldfaced figures at least one-eighth ~~[inch-~~
11 ~~es]~~ of an inch in height on the top surface of the top crossbar or of
12 the uppermost cross support of the bicycle frame or on the head tube or
13 on the toeplate not obstructed by the derailleur or gear wheels or on
14 the crank hanger; or, on a label, shield or plate permanently affixed in
15 any of the foregoing locations in such a manner that the serial number
16 will be readily visible and that such label, plate or shield cannot be
17 removed without being defaced or destroyed.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

LBD03270-05-5

1 (d) No bicycle manufactured or assembled on or after January first,
2 nineteen hundred eighty-nine shall be advertised for resale in this
3 state unless a photograph of the bicycle and at least the last four
4 digits of its identifying serial number are clearly and conspicuously
5 posted in such advertisement for sale.

6 (e) If any person or entity fails to comply with the requirements of
7 this subdivision, the secretary of state shall issue such person or
8 entity a warning, that includes but is not limited to, information on
9 compliance with this subdivision. If the person or entity continues to
10 fail to comply with the requirements of this subdivision subsequent to
11 receiving such warning, the secretary of state may assess a civil penal-
12 ty not to exceed two hundred fifty dollars per point of sale which
13 fails to comply with the requirements of this subdivision.

14 (f) A third party seller using an online marketplace shall be consid-
15 ered a person or entity who offers for sale or offers and advertises for
16 resale a bicycle covered by this section, provided however, the owner or
17 operator of such online marketplace shall not be subject to the
18 provisions of this section.

19 § 2. This act shall take effect on the thirtieth day after it shall
20 have become a law.